

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

**In the matter of the claim of
JOHNTE SMITH,**

Petitioner,

PETITION

— against —

INDEX NO.:

CITY OF NEW YORK,

Respondent.

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the Courts in the State of New York hereby affirms the truth for the following statements under the penalties of perjury.

1. I am the attorney for Petitioner **JOHNTE SMITH** (“**MR. SMITH**”), in the above entitled action, and as such I am familiar with the facts and circumstances hereinafter contained, the source of my knowledge being the file maintained by my office in the course of handling this action.

2. This Petition is respectfully submitted in support of the within Order to Show Cause requesting this Honorable Court grant Petitioner leave to file his Notices of Claims *nunc pro tunc* upon Respondent, **CITY OF NEW YORK** pursuant to General Municipal Law § 50-e(5).

3. No prior application for the relief sought herein has been made.

4. Attached hereto as **Exhibit “A”** and **Exhibit “B”** are copies of **MR. SMITH’S** Notices of Claims which were duly served on Respondent on 4/29/21 and on 4/30/21.

5. The claims herein are for false arrest, false imprisonment, malicious prosecution,

abuse of process, assault, battery, negligent hiring and supervision and civil rights violations arising out of the unlawful arrests of **MR. SMITH** on 5/5/20 in the vicinity of Davidson Avenue and West 174th Street and on 5/19/20 in the vicinity of Davidson Avenue and West 176th Street, Bronx, New York.

6. At the aforesaid time and place, Respondent, their agents, servants, and employees, assaulted, battered, falsely arrested, detained and confined **MR. SMITH** without probable cause or reasonable cause. The criminal charges for both cases were dismissed on 9/29/20.

ARGUMENT

THIS HONORABLE COURT SHOULD GRANT MR. SMITH'S APPLICATION FOR LEAVE TO FILE LATE NOTICES OF CLAIMS *NUNC PRO TUNC* UPON RESPONDENT PURSUANT TO GENERAL MUNICIPAL LAW § 50-e(5).

7. This Honorable Court should grant **MR. SMITH'S** application for leave to file late notices of claims *nunc pro tunc* upon Respondent pursuant to General Municipal Law § 50-e(5) as leave is sought within one year and 90 days of accrual of **MR. SMITH'S** claims herein.

8. It is well settled that the factors the court must consider when determining to allow service of a late notices of claims are whether: "[1] the movant demonstrated a reasonable excuse for the failure to serve the notice of claim within the statutory time frame, [2] whether the municipality acquired actual notice of the essential facts of the claim within 90 days after the claim arose or a reasonable time thereafter, and [3] whether the delay would substantially prejudice the municipality in its defense." Matter of Dubowy v. City of New York, 305 A.D.2d 320, 759 N.Y.S.2d 325 (1st Dept. 2003).

9. Additionally, it is well settled that, "the presence or absence of any one factor, including the absence of a reasonable excuse, is not necessarily fatal" Matter of Chambers v.

Nassau Cty. Health Care Corp., 50 A.D.3d 1134, 857 N.Y.S.2d 222, 224 (2nd Dept. 2008).

Furthermore, courts have liberally construed General Municipal Law § 50-e to allow a claim to be heard on its merits. See Matter of Schiffman v. City of New York, 19 A.D.3d 206, 797 N.Y.S.2d 450 (1st Dept. 2005).

A. MR. SMITH Has Demonstrated A Reasonable Excuse For Failing To Serve The Notices Of Claims Within The Required Statutory Time Frame.

10. **MR. SMITH** has proffered a reasonable excuse for failing to serve the notices of claims within the required statutory time frame of General Municipal Law § 50-e(1)(a) that being 90 days from the time of accrual.

11. **MR. SMITH** informs your affirmant that at the time his criminal cases were pending and thereafter dismissed, no one informed him, including his attorney who represented him at that time, that he had potential claims against the City of New York and the NYPD and was required to file notices of claims to preserve his rights within 90 days of his release from detention. Had **MR. SMITH** known of this possible action, and the strict time requirements for filing notices of claims, he would have spoken to another lawyer and vigorously pursued any possible claim. This, despite the fear of retaliation from the arresting officers and the NYPD in general.

12. Under the above circumstances, **MR. SMITH'S** actions or lack thereof for failing to file notices of claims within the allotted statutory period is reasonable.

13. Even if this Honorable Court determines that the excuse proffered by **MR. SMITH** is not reasonable, as indicated above, such a finding is not fatal to the application herein. See Dubowy, supra; Chambers, supra; See also Semyonova v. New York City Housing Authority, 15 A.D.3d 181, 789 N.Y.S.2d 38 (1st Dept. 2005); Weiss v. City of New York, 237 A.D.2d 212, 655 N.Y.S.2d 34 (1st Dept. 1997)

B. Respondent Acquired Actual Notice Of The Essential Facts Of MR. SMITH'S Claims Within A Timely Fashion And Within A Reasonable Time Thereafter.

(i) Respondent acquired actual notice of the essential facts.

14. The Respondent herein acquired actual notice of the essential facts of MR. SMITH'S claims within the statutory frame work because multiple members of the NYPD participated in the underlying acts giving rise to the claim herein and those officers filed reports with regard to their conduct. See Ansong v. City of New York, 308 A.D.2d 333 (1st Dept. 2003) (holding that "respondent's claimed lack of knowledge is completely refuted by the fact that the officers who allegedly assaulted petitioner would, as respondent's employees, have had immediate knowledge of the events giving rise to this dispute" and "respondent's claim of prejudice is similarly meritless since police and criminal court records pertaining to petitioner's arrest, as well as the favorable disposition of charges against him, are presumably still in existence"); Ragland v. New York City Housing Authority, 201 A.D.2d 7, 613, N.Y.S.2d 937, 940 (2nd Dept. 1994) ("Where . . . members of the municipality's police department participate in the acts giving rise to the claim, and reports and complaints have been filed by the police, the municipality will be held to have actual notice of the essential facts of the claim.");

15. Your affirmant further directs this Honorable Court to the case of Matter of Schiffman v. City of New York, 19 A.D.3d 206, 797 N.Y.S.2d 450 (1st Dept. 2005) wherein petitioner filed an application for a late notice of claim. Said application was denied. Id.

16. In reversing the lower court the First Department held that the motion court abused its discretion by denying the application. The Appellate Court stated:

This case involved the police's actions in response to an alleged assault and ensuing civilian struggle. As such, the City acquired notice of the essential facts based upon the facts that police were called to the scene and were directly involved in all aspects of the

claims Such knowledge is documented in the individual officers' memo books and official Police Department reports.

17. Here, as in Schiffman and Ragland, the Respondent acquired notice of the essential facts as the NYPD was the agency responsible for arrest and detention of **MR. SMITH**. In addition, it cannot be denied that the NYPD officers filed official arrest reports, filled out memobooks, filed UF-61 reports, and signed affidavits under penalty of perjury which would be required for a criminal court complaint. The aforesaid documents are in the custody of the NYPD and as such provide not only the essential facts but almost all the facts relating to the instant claim against Respondent.

(ii) **Even if the Respondent did not have notice of the essential facts they obtained notice within a reasonable time thereafter.**

18. Respondent in the instant matter certainly had notice of the essential facts within a reasonable time after the statutory period.

19. First, your affirmant acknowledges that **MR. SMITH'S** claim for false imprisonment and other related claims at issue herein such as assault, battery, abuse of process, negligent hiring, training, and retention, began to run at the time of his release from detention which was on or about 5/6/20 and on or about 5/20/20. See Palmer v. City of New York, 226 A.D.2d 149, 640 N.Y.S.2d 92 (1st Dept. 1996). As such, the time frame expired on or about 8/6/20 and on or about 8/20/20. Considering the notices of claims were filed on 4/29/21 and on 4/30/21, said notices of claims were *approximately eight (8) months and one (1) week* late in regards to the arrest of 5/19/20 and *approximately eight (8) months and three (3) weeks* late in regards to the arrest of 5/5/20 and filed within a "reasonable time thereafter." See Pearson v. NYCHHC, 43 A.D.3d 92, 840 N.Y.S.2d 25 (1st Dept. 2007) (6 month delay reasonable).

20. Second, your affirmant acknowledges to this Honorable Court that **MR. SMITH'S** criminal actions were terminated favorably by dismissal on 9/29/20 (See Ex. A and Ex. B). The 90 day time frame for the claim of malicious prosecution begins to run at the time the criminal actions are terminated. See Nunez v. City of New York, 307 A.D.2d 218, 762 N.Y.S.2d 384 (1st Dept. 2003). As such, the time frame expired on or about 12/29/20. Considering the notices of claims were filed on 4/29/21 and 4/30/21, said notices of claims were *approximately four (4) months* late and filed within a "reasonable time thereafter." See Pearson v. NYCHHC, 43 A.D.3d 92, 840 N.Y.S.2d 25 (1st Dept. 2007) (6 month delay reasonable).

21. It should also not go unnoticed by this Honorable Court and it is emphasized herein that **MR. SMITH'S** claims for false imprisonment, malicious prosecution and other related claims were filed within the 1 year and 90 day statute of limitations. Historically, the Courts have liberally construed General Municipal Law § 50-e to allow claims to be heard on their merits. See Matter of Schiffman, supra.

C. MR. SMITH'S Delay Does Not Substantially Prejudice Respondent In Defending The Claim.

22. **MR. SMITH'S** delay in filing timely notices of claims does not substantially prejudice Respondent ability to defend or investigate the claims herein. As indicated above, Respondent had notice of the facts giving rise to **MR. SMITH'S** claims within the statute of limitations. Moreover, the NYPD is in possession of reports and records relating to the instant matter and most importantly the delay in filing the notices of claims with regard to the false imprisonment, false arrest and malicious prosecution claim is that they are within a reasonable time frame that being *approximately eight (8) months and one (1) week* late in regards to the arrest of 5/19/20 and *approximately eight (8) months and three (3) weeks* late in regards to the

arrest of 5/5/20 for false arrest and was *approximately four (4) months* late with regard to malicious prosecution.

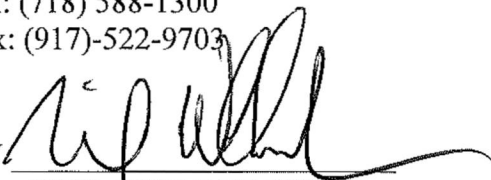
23. It should also be noted that attached hereto as **Exhibit "C"** are duly executed authorizations to unseal the criminal files as related to these incidents. This will certainly alleviate any claim of prejudice by the Respondent.

24. In sum, the delay of *approximately eight (8) months and one (1) week* late in regards to the arrest of 5/19/20 and *approximately eight (8) months and three (3) weeks* late in regards to the arrest of 5/5/20 (false arrest, et.al) and *approximately four (4) months* (malicious prosecution) respectively as to **MR. SMITH'S** claims herein as indicated above, which at the very least were reasonable, has not impeded any investigation or inquiry by Respondent that will rise to substantial prejudice.

WHEREFORE, it is respectfully requested that this Court grant **MR. SMITH'S** leave to file Notices of Claims *nunc pro tunc* along with such other and further relief as this Court may deem just, proper and equitable.

Date: Bronx, New York
April 30, 2021

Respectfully Submitted,
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BY 

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